



Notification Waiver Determination

Star Hotels Group - Ocean International Hotel, Mackay QLD

Acquisition	Migaloo Qld Pty Ltd applied for a notification waiver in respect of the proposed acquisition by Migaloo Qld Pty Ltd and North Queensland Hotel Investments Pty Ltd (together, Star Hotels Group) of the business and freehold land of OIH Mackay Pty Ltd and Seague Pty Ltd (which together comprise Ocean International Hotel in Mackay, Queensland), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	14 September 2026

Parties to the Acquisition	The acquirer, Star Hotels Group, is an independently owned and operated hospitality group which operates licensed venues and liquor retail outlets primarily along the eastern seaboard of Queensland, as well as in South Australia. It also offers accommodation services at select venues. Star Hotels Group's existing presence in the area surrounding Ocean International Hotel comprises: • Rydges Mackay Suites, a 4-star hotel offering accommodation as well as on-site liquor and dining at its attached licensed restaurant, Moss on Wood, and • Mackay Central Tavern and Andergrove Tavern, which are each a pub-style hospitality venue offering on-site liquor, dining, gaming, as well as retail packaged liquor from attached bottle stores. The target, Ocean International Hotel, is a 4-star hotel located at 1 Bridge Road, Mackay, Queensland 4740, offering beachfront accommodation as well as on-site liquor and dining at its attached licensed restaurant, Oceans Bar & Restaurant.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given:

	a. the increment in Star Hotels Group’s share of supply of accommodation, on-premises liquor, and dining services in the local area surrounding Ocean International Hotel arising from the Acquisition is expected to be small b. there are alternative providers of the relevant services in the local area surrounding Ocean International Hotel and in Mackay more broadly. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC’s approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC’s guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**